

Amendment No. 1 to SB1681

Crowe
Signature of Sponsor

AMEND Senate Bill No. 1681*

House Bill No. 1943

by adding the following after the end of subsection (h) in SECTION 1 as new subsections:

(i) A physician, qualified medical professional, or hospital employee is not subject to a civil penalty, licensure sanction, or other adverse action under this section if the physician, qualified medical professional, or hospital employee acts in good faith and exercises reasonable clinical judgment based upon the information available at the time care is rendered or a transfer decision is made.

(j) A civil penalty or licensure sanction shall not be imposed under this section for conduct that is the subject of an enforcement action, settlement, corrective action plan, or final determination under the federal Emergency Medical Treatment and Labor Act (EMTALA) (42 U.S.C. § 1395dd), as amended, or federal regulations promulgated to effectuate such act.

AND FURTHER AMEND by adding the following at the end of subsection (e) in SECTION 1:

As used in this subsection (e), "capacity" has the same meaning as defined in 42 CFR 489.24.

AND FURTHER AMEND by adding the following at the end of subdivision (h)(3) in SECTION 1:

Civil penalties imposed pursuant to this section are limited to one (1) civil penalty per patient encounter, regardless of the number of alleged violations arising from the same event.

AND FURTHER AMEND by deleting "who violates this section" from subdivision (h)(4)(A) in SECTION 1 and substituting "who knowingly and willfully violates this section".